

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Civil Revision No. 737 of 2022

In the matter of:

M/S. Molla and Company,
proprietor Md. Chunnu Mia
...Petitioner.

-Vs-

Present
Mr. Justice Mamnoon Rahman

Regional Food Controller and others.
....Opposite parties.

Mr. A.R.M. Hasanuzzaman, Adv.
...For the petitioner.
Mr. Kabir Iqbal Hossain, Adv.
...For the opposite party No. 2.

Heard & judgment on: **The 6th December, 2023**

In an application under section 115(1) of the Code of Civil Procedure, 1908 rule was issued calling upon the opposite parties to show cause as to why the impugned judgment and order dated 14.12.2021 passed by learned Additional District Judge, 2nd Court, Dhaka in Miscellaneous Appeal No. 11 of 2021 dismissing the appeal and thereby affirming the judgment and order dated 19.01.2021 passed by the learned Senior Assistant Judge, 2nd Court, Dhaka in Civil Suit No. 374 of 2019 rejecting the application, should not be set aside and/or pass such other or further order or orders as to this court may seem fit and proper.

I have heard the learned Advocates for the petitioner as well as opposite party No. 2. I have perused the revisional application, ground taken thereon as well as necessary papers and documents annexed herewith.

On perusal of the same, it transpires that the suit is pending before the court below since 2009. In such circumstances, I am of the view that justice would be done if a direction be given upon the court below to hear and dispose of the suit expeditiously, as possible, within a fixed period. And the learned Advocate for the petitioner agitated/argued the point at the time of hearing, would be submitted before the court below. Accordingly, the court below is directed to hear and dispose of the suit, namely Title Suit No. 626 of 2009 renumbered as Civil Suit No. 374 of 2019 strictly on merit by applying its independent and judicial mind within 30th March, 2024 without fail and without giving any adjournment to the parties in any manner.

The trial court is further directed to inform this court about the disposal of the suit as directed, in writing, through the Registrar of the High Court Division within 7(seven) days from the date of disposal of the suit.

With this observation and direction, the instant rule is disposed of.

The office is directed to communicate the order to the concerned court below with a copy of the judgment, at once.

(Mamnoon Rahman,J:)